

Tentative Rulings for Department 502

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Tentative Ruling

Re: **Reyes v. Mad Duck Brewing, LLC, et al.**
Superior Court Case No. 23CECG00936

Hearing Date: May 13, 2026 (Dept. 502)

Motion: Petition to Confirm Arbitration Award

Tentative Ruling:

To correct the arbitrator award with respect to orders made to stayed claims not subject to arbitration in *Ariel Reyes v. Mad Duck Brewing LLC, et al.*, filed in Fresno County Superior Court as Case Nos. 22CECG02134 and 23CECG00936 and to grant the petition to confirm the final corrected arbitration award. (Code Civ. Proc. § 1285, *et seq.*)

Explanation:

Under Code of Civil Procedure section 1285, "Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ. Proc., § 1285.)

"If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

Also, under section 1286.2, the court shall vacate the award if the court determines any of the following:

- (1) The award was procured by corruption, fraud or other undue means.
- (2) There was corruption in any of the arbitrators.
- (3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.
- (4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.
- (5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.

(6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision... (Code Civ. Proc., § 1286.2, subd. (a).)

"Subject to Section 1286.8, the court, unless it vacates the award pursuant to Section 1286.2, shall correct the award and confirm it as corrected if the court determines that: (a) There was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award; (b) The arbitrators exceeded their powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or (c) The award is imperfect in a matter of form, not affecting the merits of the controversy." (Code Civ. Proc., § 1286.6.)

The Code of Civil Procedure sections dealing with vacation and correction of arbitrational warrants provide the exclusive grounds upon which court may review a private arbitration award. (*J. Alexander Securities, Inc. v. Mendez* (1993) 17 Cal.App.4th 1083.)

"[A]n award reached by an arbitrator pursuant to a contractual agreement to arbitrate is not subject to judicial review except on the grounds set forth in sections 1286.2 (to vacate) and 1286.6 (for correction)." (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 33.) Absent proof of one of the grounds listed in those sections, a court may not intervene. Even "the existence of an error of law apparent on the face of the award that causes substantial injustice does not provide grounds for judicial review." (*Ibid.*)

Defendants Mad Duck Brewing, LLC, Mad Duck Ventures, LLC, and Mad Duck Craft Management, LLC move to confirm an arbitration award pursuant to Code of Civil Procedure section 1285. The petitions are verified and include a copy of the arbitration agreement, the name of the arbitrator, and a copy of the arbitrator's award. The award sought to be confirmed is an order, drafted by petitioners, granting a dispositive motion and ordering the dismissal of the superior court actions which were stayed pending the arbitration. Plaintiff opposes the motion, arguing the award exceeds the authority of the arbitrator in making findings and orders with respect to plaintiff's PAGA claims.

The award on its face exceeds the authority of the arbitrator to resolve the dispute under the arbitration clause in its attempt to make orders with respect to the representative PAGA claim stayed in this action and not subject to arbitration. As such, the court intends to correct the award by striking the order to dismiss the superior court action and clarifying that the only PAGA claim that was before the arbitrator was the plaintiff's individual claim.

Specifically, the court will strike "all" at line 6 of page 2 of the order, insert the word "individual" between "the PAGA" at line 6 of page 2, strike "and the entire case entitled *Ariel Reyes et al. v. Mad Duck Brewing, LLC, et al.*, filed in Fresno County Superior Court as Case No. 23CECG00936, is dismissed with prejudice" at page 2 lines 7 through 9, and to strike "and are dismissed with prejudice from both civil cases entitled *Ariel Reyes et al. v. Mad Duck Brewing LLC, et al.*, filed in Fresno County Superior Court as Case Nos. 22CECG02134 and 23CECG00936. The entirety of the civil case entitled *Ariel Reyes et al.*

v. *Mad Duck Brewing, LLC, et al.*, filed in Fresno County Superior Court as Case No. 23CECG00936, is also dismissed with prejudice" at page 2, beginning at line 13 and continuing through line 17.

Plaintiff requests that any correction of the award also remove any findings or conclusions of law with respect to the representative PAGA claim. Such a request challenges the merits of the arbitrator's findings with respect to the PAGA Notice and is not subject to correction. The court has no intention of disturbing the factual findings of the arbitrator.

Accordingly, the court intends to grant the petition to confirm the arbitration award and enter judgment pursuant to the terms of the corrected arbitration award.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/12/26
(Judge's initials) (Date)